

• Paralegal • HRLSC • Other • Self-represented	4% 11% 4% 55%	6% 13% 4% 50%
Respondents with a Representative • Lawyer • Paralegal • Other • Self-represented	83% 1% 2% 14%	77% 1% 5% 17%

Hearings and Decisions:

Type of Decision	2011-2012	2010-2011	2009-2010
Final decision on the merits	95	104	75
Discrimination found	40	41	29
Discrimination not found	55	63	46
Dismissal on a preliminary basis*	786	562	301
Deferrals	229	233	147
Withdrawals**	3	38	212
Other procedural issues	355	570	931
Reconsideration	140	103	66
Breach of settlement decision	12	7	8
TOTAL DECISIONS	1,620	1,617	1,740

* This includes cases dismissed under the HRTO's new summary hearing procedure based on a finding that the application had "no reasonable prospect of success."

**The HRTO no longer prepares a decision for each withdrawal, and most withdrawals are now confirmed by letter.

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LANDLORD AND TENANT BOARD

Associate Chair's Message

Lilian Ma, Associate Chair **Alternate Executive Chair**
Landlord and Tenant Board *Social Justice Tribunals Ontario*

This has been a busy year at the Board as we focused our efforts on increasing the efficiency of the Board's

scheduling model for hearings. We have made changes to the way we schedule those application types that make up the bulk of the LTB's workload, the landlord's application to terminate the tenancy and evict the tenant because of rent arrears (L1) and to collect rent arrears (L9). The changes to the scheduling model have freed more time to hear contested/complex applications that generally take longer to adjudicate, and they have improved our time to hearing for all applications. For more information, please see the Operational Highlights section of this report.

I am grateful for the input from Members and staff as well as the Board's regular "users" at three focus groups held in London, Toronto and Ottawa. The ongoing dialogue between the Board and its Stakeholder Advisory Committee* also ensures that the views of both landlord and tenant groups are given the necessary attention in the development of procedures, forms, Rules of Practice and Interpretation Guidelines.

The Board's Rules and Guidelines Committee continues to play a valuable role in amending existing rules of practice and interpretation guidelines, and developing new ones where the need is identified by Board Members, staff and stakeholders. The Board's Rules and Guidelines promote consistency in the application of the legislation and the Board's processes.

I also wish to thank the Board Members and staff who work together as a team in delivering services to tenants and landlords. In addition to their ongoing commitment to the effective and efficient operation of the Board, they also provided valuable input into the Board's new scheduling model. My appreciation and thanks go to the Board's Vice Chairs, the Director, Case Management/Registrar, Regional Managers and Managers of Customer Service, as well as the SJTO Legal Services and Program Development Unit. They all play an important role in the management, training and policy work they do for the Board.

I look forward to the coming year as the Board undertakes new initiatives to implement legislative changes with a view to facilitating access to justice for Ontario landlords and tenants.

* Representatives from the Advocacy Centre for Tenants Ontario (ACTO) and the Federation of Rental-Housing Providers of Ontario (FRPO) participate in the Stakeholder Advisory Committee.

Legislative Authority

The Landlord and Tenant Board (LTB) draws its legislative authority from the *Residential Tenancies Act, 2006* (the RTA or the Act), which in section 1 sets out the following purposes for the Board:

- provide protection for residential tenants from unlawful rent increases and unlawful evictions;
- establish a framework for the regulation of residential rent;
- balance the rights and responsibilities of residential landlords and tenants; and,
- provide for the adjudication of disputes and for other processes to informally resolve disputes.

Dual Mandate

Resolving disputes

- Adjudication

In the Act, section 168(2) provides that the Board has jurisdiction to determine all applications under the RTA, while section 174 provides the Board with the authority to hear and determine all questions of law and fact with respect to all matters within its jurisdiction under the Act. Pursuant to section 183 of the Act, the Board strives to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and to be heard on the matter.

- Mediation

Section 194 of the Act allows the Board to mediate disputes, if both parties agree to try this approach. Board Mediators are available to meet with parties to try to help them reach a workable agreement that is acceptable to both sides.

Providing information

The LTB, under section 177 of the Act, is required to give information to landlords and tenants about their rights and obligations. It fulfills this mandate through various means:

- A virtual Call Centre handles customer inquiries, in both English and French, through toll free lines. Customer Service Officers are available during regular business hours. An automated telephone service answers frequently-asked questions 24 hours a day, seven days a week. This year, the Board responded to over 500,000 telephone calls.
- Eight offices that offer in-person service to clients. At those offices, landlords and tenants can obtain information from one of the Board's Customer Service Officers about their rights and obligations under the law, as well as file applications, attend hearings and participate in mediation.
- A bilingual website, tribunalsontario.ca/ltb, which received approximately 1.2 million hits each month over the past fiscal year. The website provides access to all Board forms, brochures, Rules of Practice, Interpretation Guidelines, the Board's complaint procedures and its Policy on Accessibility and Human Rights.

Amendments to the RTA

Effective January 1, 2012, the RTA was amended by Bill 140 as part of the Long Term Affordable Housing Strategy of the Ministry of Housing. Section 206.1 was added to the RTA, permitting the Board to designate staff to hold a hearing and make an order related to an uncontested application or an application specified in the Board's Rules of Practice. In the coming year the Board, in consultation with its stakeholders, will consider how implementing this change might enhance the effectiveness and efficiency of the Board's service to its clients. On January 1, 2013, we anticipate the implementation of other Bill 140 amendments, such as section 189, which will require the Board to serve the notice of hearing and application to the respondent unless the Board, in the circumstances set out in its Rules, orders the applicant to do so.

Operational Highlights

The Landlord and Tenant Board (LTB) is a high-volume tribunal with a mandate to provide the most expeditious method of determining the questions that arise in a proceeding and to provide parties an adequate opportunity to know the issues and be heard on the matter (see section 183 of the *Residential Tenancies Act*, 2006, (the RTA).

During the 2011-2012 fiscal year, the Board focused its efforts on improving the way it schedules landlord applications to terminate a tenancy and evict based on non-payment of rent and to collect rent arrears, as improvements in this area would have the greatest impact.

L1/L9 scheduling

In November 2011, the LTB implemented a new scheduling model to optimize the use of hearing time and resources with a view to improving service to the landlords and tenants of Ontario. The new model consists of scheduling L1 and L9 applications on specific days of the week in each regional office. This change has not been implemented in off-site hearing locations as the number of L1/L9 applications does not generally warrant such an approach. Hearing blocks still have a mix of application types to ensure equal access for landlord and tenant applications in off-site locations.

Grouping L1 and L9 applications together in one hearing block has resulted in more focussed and effective hearings and has led to reduced time to hearing for all application types, including tenant applications. The Board is also able to schedule adjourned matters more quickly. Feedback from the Board's stakeholders about these changes has been positive.

L1/L9 update form

As part of the scheduling changes the Board introduced during this fiscal year, landlords or their representatives are now asked to update the status of the L1 or L9 application in writing, as of the hearing date, and to submit this update to the presiding Member.

The Board has developed a form for landlords and their representatives to use to update the information. The *L1/L9 - Information Update as of Hearing Day* form is available at all Board offices and in the Other Forms section of the website.

Rules and Guidelines changes

Effective January 6, 2012, the Board revised a number of its Rules of Practice and Interpretation Guidelines. As well, one new Rule and two new Guidelines were released. These new documents are Rule 32, "Legal Representatives Acting as Advocates and Witnesses in the Same Proceeding"; Interpretation Guideline 20, "Parties, Agents and Representatives"; and Interpretation Guideline 21, "Landlords, Tenants, Occupants and Residential Tenancies." All of the Board's Rules and Guidelines are available on its website.

Public education videos

The Board has developed five public education videos to make information about the law and the Board's processes more accessible. These videos are posted on the Board's website (with voice over and captioning). Captioned versions are also played in the waiting areas of the Board's offices.

Statistics/Commentary

Applications Filed

From April 1, 2011, to March 31, 2012, the Board received 81,084 applications. This is an increase of 3,690 applications, or approximately five per cent, compared to the 2010-2011 caseload.

Landlord vs Tenant Applications

The ratio of landlord to tenant applications has remained relatively constant since 1998 when the resolution of landlord-tenant disputes was transferred from the provincial court system to an adjudicative tribunal. This past year was no exception, with 91 per cent of applications filed by landlords and 9 per cent filed by tenants.

Applications by Type

Applications for termination of tenancy and eviction continue to represent the bulk of the Board's workload. Of the total applications received by the Board, 72.2 per cent were for termination of tenancy because of arrears of rent. The following table shows the number of each application type filed by landlords for the 2011-2012 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by landlords.

Landlord Applications by Type

Case type	Application Description	2011-2012	2010-2011	2009-2010
A1	Determine Whether the Act Applies	50 (0.07%)	48 (0.07%)	49 (0.07%)
A2	Sublet or Assignment	234 (0.32%)	199 (0.28%)	153 (0.21%)
A3	Combined Application (usually includes an L1)	3,736 (5.05%)	3,066 (4.34%)	2,796 (3.92%)
A4	Vary Rent Reduction Amount	106 (0.14%)	182 (0.26%)	275 (0.39%)
L1	Terminate & Evict for Non-Payment of Rent	54,847 (74.16%)	53,182 (75.29%)	54,109 (75.80%)

L2	Terminate for Other Reasons & Evict	6,867 (9.28%)	6,158 (8.72%)	5,628 (7.88%)
L3	Termination - Tenant Gave Notice or Agreed	1,263 (1.71%)	1,075 (1.52%)	991 (1.39%)
L4	Terminate the Tenancy - Failed Settlement	4,905 (6.63%)	4,805 (6.80%)	5,301 (7.43%)
L5	Rent Increase Above the Guideline	252 (0.34%)	391 (0.55%)	294 (0.41%)
L6	Review of Provincial Work Order	13 (0.02%)	7 (0.01%)	12(0.02%)
L7	Transfer Tenant to Care Home	1 (0.00%)	1 (0.00%)	3 (0.00%)
L8	Tenant Changed Locks	21 (0.03%)	26 (0.04%)	22 (0.03%)
L9	Application to Collect Rent	1,664 (2.25%)	1,499 (2.12%)	1,754 (2.46%)
Total		73,959	70,639	71,387

The following table shows the number of each application type filed by tenants for the 2011-2012 fiscal year and the two previous years. The number in brackets shows the percentage of the total applications filed by tenants.

Tenant Applications By Type

Case type	Application Description	2011-2012	2010-2011	2009-2010
A1	Determine Whether the Act Applies	36 (0.51%)	30 (0.44%)	33 (0.49%)
A2	Sublet or Assignment	57 (0.80%)	49 (0.73%)	43 (0.64%)
A3	Combined Application	1,435 (20.14%)	1,224 (18.12%)	1,141 (17.07%)
A4	Vary Rent Reduction Amount	1 (0.01%)	0 (0.00%)	2 (0.03%)
T1	Rent Rebate (e.g. illegal rent)	578 (8.11%)	520 (7.70%)	574 (8.59%)
T2	Tenant Rights	3,548 (49.80%)	3,587 (53.10%)	3,517 (52.61%)
T3	Rent Reduction	65 (0.91%)	43 (0.64%)	43 (0.64%)
T4	Failed Rent Increase Above Guideline	1 (0.01%)	1 (0.01%)	2 (0.03%)
T5	Bad Faith Notice of Termination	139 (1.95%)	128 (1.89%)	115 (1.72%)

T6	Maintenance	1,264 (17.74%)	1,171 (17.34%)	1,215 (18.18%)
T7	Suite Meters	1 (0.01%)	2 (0.03%)	N/A
Total		7,125	6,755	6,685

Pending TPA Applications

At the beginning of the 2011-2012 fiscal year, only three applications that had been filed under the *Tenant Protection Act, 1997* (the TPA), were still active. The TPA was the legislation in effect prior to the implementation of the RTA in 2007. The Board is responsible for resolving these applications in addition to its RTA workload. Between April 1, 2011, and March 31, 2012, the Board resolved two TPA applications, leaving one TPA application awaiting resolution.

Application Resolution

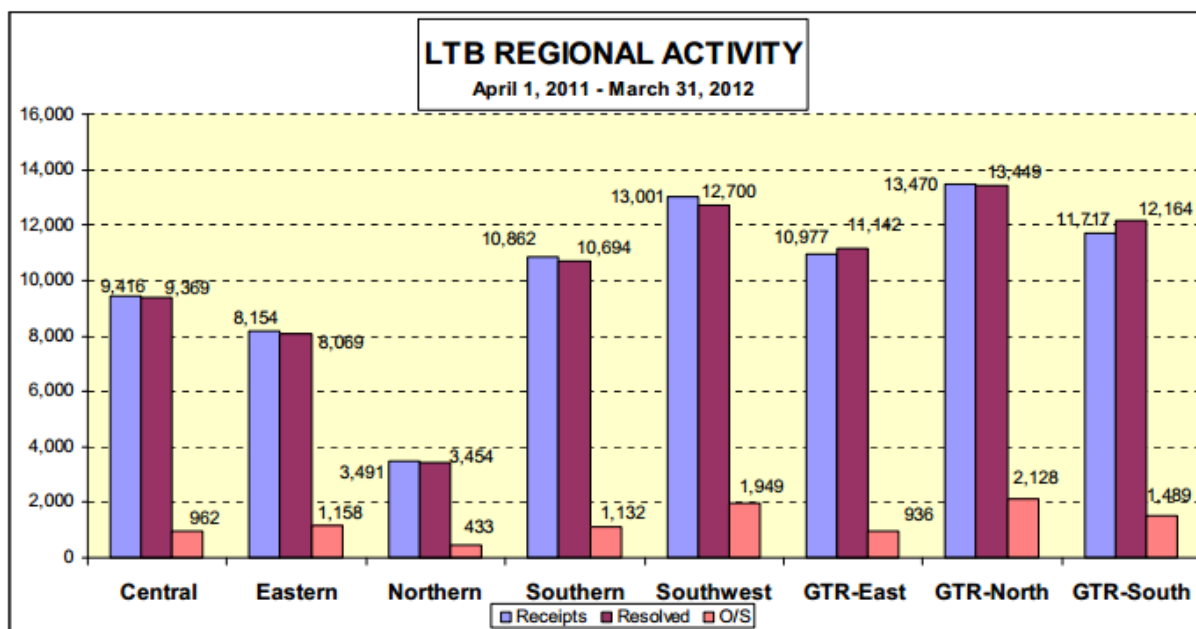
For the fiscal year 2011-2012, the Board received 81,084 applications and resolved 81,032 applications. Some applications may generate more than one resolution because of the re-opening and review processes. As of March 31, 2012, the number of unresolved RTA applications is 10,187. This number represents approximately seven weeks' work at the Board, which is the workload appropriate to warrant smooth and continuous operation for the Board.

The following table shows the total number of applications received, resolved and outstanding at the end of the fiscal year, for 2011-2012 and the two previous years.

Application Receipts and Resolutions

	2011-2012	2010-2011	2009-2010
Applications received	81,084	77,394	78,072
Applications resolved	81,032	75,420	82,464
Outstanding at year end	10,187	10,140	8,166

The following chart shows how applications and resolutions are relatively constant across regions and also illustrates the regional distribution of applications filed with the Board.



Review and Appeal Statistics

A party to an application may ask for a review of a Board order if he or she believes that the order contains a serious error or that a serious error occurred in the proceedings, including where a party was not reasonably able to participate in the proceeding. The authority for requesting a review comes from section 21.2 of the *Statutory Powers Procedure Act*, subsection 209(2) of the RTA, and Rule 29 of the Board's Rules of Practice.

When a review request is filed with the Board, a Member conducts a preliminary review, without holding a hearing, to determine whether or not the order may contain a serious error or a serious error may have occurred in the proceedings. When the Member determines that there is a possibility of a serious error affecting the result of the case, a review hearing will be held. Otherwise, the Member will dismiss the request for review.

Over the 2011-2012 fiscal year, the Board received 2,200 requests for review, 2.7 per cent of the total number of applications received. Of the review requests received, 1,028 (1.26 per cent) were sent to hearing.

Section 210 of the RTA also provides that any person affected by a Board order may appeal the order to the Divisional Court within 30 days after being given the order, but only on a question of law. Over the 2011-2012 fiscal year, the Board received 134 Notices of Appeal of Board orders. This number represents 0.17 per cent of the total number of applications resolved by the Board.

Average Processing Times

The Board tracks the length of time from the date an application is filed to the initial hearing date that is scheduled, and the length of time from the final hearing date to the date the order is issued. While most cases are resolved during the initially scheduled hearing, some require more than one hearing appearance. A number of factors, such as the availability of parties or their representatives, can affect the length of time between the initial hearing date and the final hearing date.

The processing times generally correspond to the complexity of the application types. On average for the 2011-2012 fiscal year, hearings of L1 applications (to end the tenancy and evict the tenant for rent arrears) were scheduled within 25 business days of the date the applications were filed, and the order issued within four business days of the final hearing. L5 applications filed by landlords (for above-guideline rent increases) generally involve the lengthiest processes and as a result tend to be heard 145 to 155 business days after the application was filed, and have an order issued within 15 business days after the hearing. T2 and T6 (tenant rights and maintenance) applications, which tend to be more complex, were typically heard within 25 business days of their filing date, and the order issued within eight business days of the final hearing.

Mediation

The Landlord and Tenant Board employs 21 mediators throughout the province to provide mediation services where both parties involved in an application are interested in mediating a resolution of the issues in dispute. In the 2011-2012 fiscal year, approximately 38 per cent of all applications where both parties showed up at the hearing were successfully resolved through mediated agreements and/or resulted in consent orders.

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ONTARIO SPECIAL EDUCATION TRIBUNALS

Associate Chair's Messages

Céline T. Allard, Associate Chair

Ontario Special Education (French) Tribunal

On behalf of the French and English Ontario Special Education Tribunals, I am pleased to provide the following report on the work of both tribunals.

One of the unique features of the 1980 *Education Amendment Act*, which guaranteed universal access to public education for all students, "exceptionality notwithstanding," was that it provided parents with the right to appeal the placement of exceptional students without having to go to court. The right of appeal to an independent adjudicative body, whose members have a high level of expertise in special education legislation and the ability to determine what is in the best interest of students with exceptionalities regarding programs, services and accommodation in an educational setting, continues to be an integral part of Ontario's unique approach to providing natural justice and due process to these students, their families and the education system.

Adjudicating these complex cases requires extensive knowledge, sensitivity and understanding of exceptional children and the education system in relation to the legal framework, as well as knowledge of teaching and learning strategies. Expert witnesses often appear before the Tribunal and give opinions on key facts relating to a broad array of exceptionalities. The expertise of the Tribunal in these areas is evident in the background of the appointees and has been recognized and acknowledged by all levels of courts.

Geographical representation across Ontario is also important when members are appointed. Hearing panels are always made up of three members, and hearings are held in a location that is convenient for both parties.

Special education is a constantly evolving field. While legislation may remain the same, there are many new research findings that inform the identification of exceptionalities and the determination of what is in the best interest of an identified exceptional student. OSET members must ensure that they are well-informed about such matters, since their mandate is more complex than the simple application of the statute. Therefore, they regularly participate in ongoing professional development activities related to their role as adjudicators and work independently as well as collectively to maintain their level of special education expertise.

As neutral adjudicators, and experts in special education, OSET members must always strive to reach a decision consistent with the best interests of the student based on the facts and evidence presented. I would like to thank all members of both tribunals for their continuing service in the interests of Ontario's exceptional students.

Legislative Authority

The legislative mandate of the Ontario Special Education Tribunals (OSET) is found in section 57 of the *Education Act*, R.S.O. 1990, c. E. 2. Their primary role is to adjudicate appeals initiated by parents regarding identification and/or placement decisions made by school boards with respect to students with special needs (exceptional pupils), and to make decisions that are in the best interest of these pupils.